

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

To be completed by the City/Town or County Clerk:

Date Filed With Clerk: 5/20/16 MR 140053

	Annual Fee	Prorated Fee
Basic Fee:	\$ <u>1550.00</u>	\$ _____
Add'l Dispensing Room Fee:	\$ _____	\$ _____
Transfer Fee:	\$ _____	\$ _____
Total License Fee Collected:	\$ <u>1050.00</u>	\$ _____
Publishing Fee Collected:	\$ <u>100.00</u>	\$ _____

Publishing Direct Billed: ☐

Advertising Dates (2 wks): June 2, 9, 2016

Hearing Date: June 1, 27, 2016

LICENSE TERM: upon issuance
Month _____ Day _____ Year _____

Through: March 31, 2017
Month _____ Day _____ Year _____

Local License No. 70

A copy must be immediately forwarded to:
State of Wyoming Liquor Division
6601 Campstool Rd.
Cheyenne WY 82002-0110

Formerly Held by: _____

Applicant: J Aldana LLC

Trade Name (dba): El Poblano Mexican Restaurant

Premise Address: 1720 Capital Ave
Number & Street

Cheyenne WY 82001 Laramie
City State Zip County

Mailing Address: 4306 Woodcrest Ave
Number & Street or P.O. Box

Cheyenne WY 82001
City State Zip

Business Telephone Number: (307) 514 5550

Fax Number: ()

E-Mail Address: Lita Pena 2003 To D@gmail.com

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

FILING FOR ☒ NEW ☐ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF <u>Frank</u> FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION ☒ LLC ☐ LLP	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) RETAIL LIQUOR LICENSE ☐ ON-PREMISE ONLY (BAR) ☐ OFF-PREMISE ONLY (PACKAGE STORE) ☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE) ☒ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ BAR AND GRILL LIMITED RETAIL (CLUB) ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☐ WINERY ☐ DISTILLERY SATELLITE ☐ WINERY SATELLITE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT	To Assist the Liquor Division with scheduling inspections: WHEN DO YOU OPERATE? ☐ NON-OPERATIONAL/PARKED ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>Jan</u> to <u>Dec</u> DAYS OF WEEK (e.g. Mon through Sat) <u>Sun - Sat</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>7:00 am - 10:00 pm</u>
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1. DISPENSING ROOM DESCRIPTION WITH DIMENSIONS:

(a) Give a description with dimensions of the dispensing room and state where it is located within the building (e.g. 10 x 12 room in SE corner of building). Please provide a drawing of the establishment that includes the dispensing room: W.S. 12-4-102(a)(i)

16' x 10' Room in Center of Restaurant

(b) If Winery or Microbrewery, also list the manufacturing facility (e.g. MFG: 10' X 12' room in SW portion of bldg.)

MFG: N/A

(c) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

N/A

(d) Provide the legal description and the zoning of the site where the applicant will conduct business:

N 1/2 LOT 1 (NORTH 66') BLOCK 355 O.C.

CPD

2. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103 (a) (iii)

(1) **OWN** the building in which sales room is located?

☐ YES (own)

(2) **LEASE** the building in which sales room is located?

☒ YES (lease)

* (A) **DATE** lease expires March 31, 2017 located on page 1 paragraph 1 of lease document.

(B) Provision for **SALE** of alcoholic or malt beverages located on page 1 paragraph 1 of lease.

NOTE: Please submit a copy of the lease with the application. W.S. 12-2-103(a)(iii) requires the lease be valid THROUGH the TERM OF THE LICENSE and MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO
4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith: _____
5. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
If "YES", explain: _____
6. Is the applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
7. Is the applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE:

8. Have you submitted a valid food service permit? W.S. 12-4-407(a)/W.S. 12-4-413(a) ☒ YES ☐ NO

RESORT LICENSE:

9. Does the resort complex:
- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended at least one million dollars (\$1,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO

MICROBREWERY LICENSE:

10. Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ MICROBREWERY ☐ WINERY
11. (a) Do you self distribute your products? W.S. 12-2-201(a) ☐ YES ☐ NO
(Requires additional licensing with the Liquor Division)
- (b) Do you distribute your products through an existing malt beverage wholesaler? W.S. 12-2-201(g)(i) (Requires additional licensing with the Liquor Division) ☐ YES ☐ NO

WINERY LICENSE:

12. Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ MICROBREWERY ☐ WINERY

LIMITED RETAIL (CLUB) LICENSE:

13. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)
- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

LIMITED RETAIL (CLUB) LICENSE:

14. **VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):
- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

LIMITED RETAIL (CLUB) LICENSE:**15. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):**

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

LIMITED RETAIL (CLUB) LICENSE:**16. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):**

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

17. (a) If applicant is filing as an Individual or Partnership: W. S. 12-4-102 (a) (ii) & (iii)

Each individual or partner must complete this section.

If the applicant is filing as a Club:

Each officer must complete this section.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES		Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
		Residence Address No. & Street City, State & Zip					
VASQUEZ JOSE VASQUEZ	3/19/80	4306 WOODCREST AVE CHEYENNE WY 82001	(307) 286-9771	YES ☒	YES ☐	YES ☐	
				NO ☐	NO ☒	NO ☒	
				YES ☐	YES ☐	YES ☐	
				NO ☐	NO ☐	NO ☐	
				YES ☐	YES ☐	YES ☐	
				NO ☐	NO ☐	NO ☐	
				YES ☐	YES ☐	YES ☐	
				NO ☐	NO ☐	NO ☐	

(If more information is required, list on a separate piece of paper and attach to this application.)

(b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102 (a) (iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete this section.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES		Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
		Residence Address No. & Street City, State & Zip						
VASQUEZ JOSE VASQUEZ	3/19/80	4306 WOODCREST AVE CHEYENNE WY 82001	(307) 286-9771	2 Mos	100	YES ☐	YES ☐	
						NO ☒	NO ☒	
						YES ☐	YES ☐	
						NO ☐	NO ☐	
						YES ☐	YES ☐	
						NO ☐	NO ☐	
						YES ☐	YES ☐	
						NO ☐	NO ☐	

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Clu Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the stated facts, are true and accurate.

STATE OF WYOMING)

SS.

COUNTY OF LARAMIE)

Before Me, M. MARVIN ESPINOZA, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for

LARAMIE

County, State of Wyoming, personally appeared

JOSE VASQUEZ

(Insert Names)

name he/she being first duly sworn

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)



1. [Signature]

2.

3.

4.

My Commission expires: MAY 03 2018

Witness my hand and official seal:

M. Marvin Espinoza

(Notary Public or other officer authorized to administer oaths)

Title NOTARY PUBLICDated: 05/18/16**REQUIRED ATTACHMENTS:**

- ☒ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- ☒ Include a drawing of the dispensing room W.S. 12-5-201 (a).
- ☒ Attach any lease agreements W.S. 12-4-103 (a) (iii).
- ☒ Include a copy of the CURRENT food service permit for Restaurant or Bar & Grill Liquor License applicants W.S. 12-4-407 (a) or 12-4-413 (a).
- ☒ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for two (2) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Accl:		

May 18, 2016

Mayor and Members of City Council
2101 O'Neil Avenue
Cheyenne, WY 82001

Dear Mayor and Council Members:

My name is Jose Vasquez and I am the owner of El Poblano Mexican Restaurant located at 1720 Capitol Avenue. Attached is an application for a restaurant liquor license.

I appreciate your time and consideration for this request.

Sincerely,

A handwritten signature in black ink, appearing to read "Jose Vasquez", enclosed within a hand-drawn oval.

Jose Vasques

STATE OF WYOMING
Office of the Secretary of State

I, ED MURRAY, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

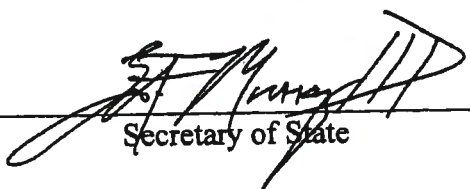
J Aldana LLC

Accordingly, the undersigned, by virtue of the authority vested in me by law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **21st** day of **March, 2016**.



Filed Date: 03/21/2016


Secretary of State

By: Whitney Harmon

WDA 17A
04/2k

WYOMING DEPARTMENT OF AGRICULTURE

CHEYENNE, WYOMING 82002

RECEIPT NUMBER

FD 055905

FOOD LICENSE



Account # 15483/15483-1

Whereas this party has made application for the licenses listed below in the State of Wyoming according to the law and agrees to comply with all laws, rules and regulations thereto, including the payment of all required fees, there is hereby issued to the applicant this license. This license is not transferable and, unless revoked, shall expire on the date indicated below.

EL POBLANO MEXICAN RESTAURANT
1720 CAPITOL AVE
CHEYENNE, WY 82001

Expiration Date 4/26/2017

Director of Agriculture

Equal Opportunity in Employment and Services

City of Cheyenne, Wyoming
LICENSE/PERMIT

Office of City Clerk
2101 O'Neil Ave., Rm 101

Business name: El Poblano Mexican Rest.
Location addr: 1720 Capitol Avenue
License Nbr/Class: BA-16-00055 Burglar Alarm 100
Total: \$100.00
Comments: Police Department will assess a fee after 2 false alarms. Notify PD and Alarm Monitoring Co. of any changes to emergency contact information within 5 calendar days. Any changes in ownership or alarm companies will require a new permit at \$100 fee.

El Poblano Mexican Rest.
1720 Capitol Avenue
Cheyenne WY 82001

RICHARD L. KAYSER, MAYOR
CAROL INTLEKOFER, CITY CLERK



716 RANDALL AVENUE
CHEYENNE, WY 82001
307-631-1028

ROB GRAHAM
BROKER/OWNER

MIKE STOTTS
SALES ASSOCIATE/OWNER

EXTENSION TO LEASE AGREEMENT

1. Lease at 1720 Capitol Ave.
2. between J ALDANA, LLC and Jose Vasquez (Tenants) and Cheyenne Property Management Group, LLC (Landlord) shall be extended to March 31, 2017.
3. No other changes to original lease.

LANDLORD:

Bethany Burr
Name/Title:
DATE: 6/2/16

TENANT(S):

J Aldana
J ALDANA, LLC Jose Vasquez

Date: 6/2/16



Date

Addendum to 1720 Capitol Ave. Lease Agreement originally signed March 21, 2016

Cheyenne Property Management Group, LLC is aware and in agreement with J Aldana LLC obtaining a liquor license at this address.

Thank you,

A handwritten signature in black ink, appearing to read 'W. Aldana', is written over the printed name of the company.

Cheyenne Property Management Group, LLC

COMMERCIAL LEASE

THIS LEASE, executed at Cheyenne, Wyoming, this 21 day of March, 2016, is between Cheyenne Property Management Group, LLC. ("LESSOR") and Jose A. Vasquez and J. Aldana, LLC ("LESSEE"), whose principals are the undersigned.

WITNESSETH:

1. LEASED PREMISES. LESSOR leases to LESSEE and LESSEE takes and leases from LESSOR subject to the terms and conditions herein, that certain realty and improvement located at 1720 Capitol Ave. Cheyenne, WY 82001.

2. TERM OF TENANCY.

a. The term of this Lease shall commence on March 21, 2016 (Commencement Date) and shall terminate on February 28, 2017. (Termination Date).

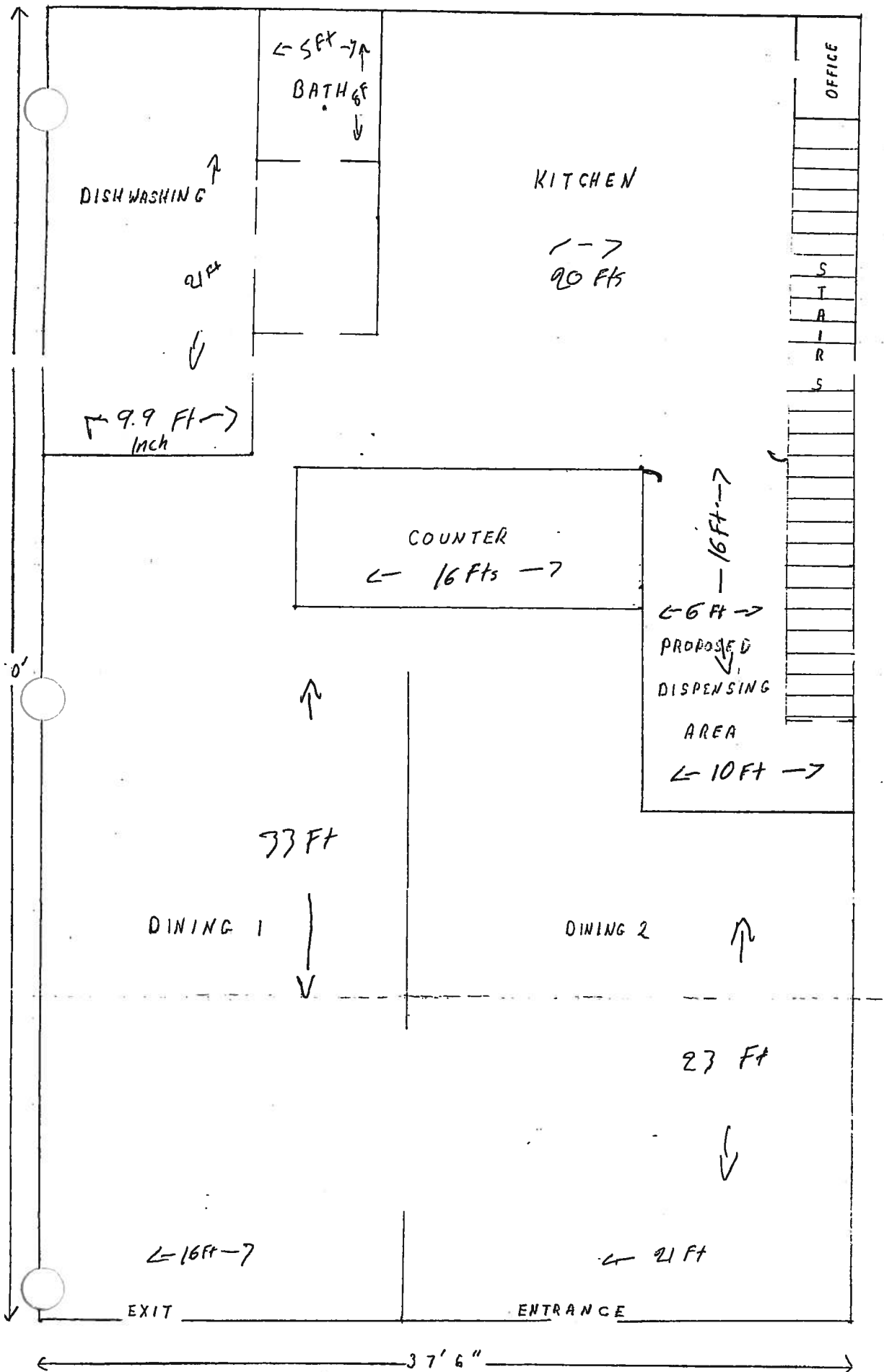
b. If LESSEE shall remain in possession of the premises after the expiration of the Lease term (base lease term plus all extensions) without executing a new Lease, then such "holding over" shall be construed as a tenancy from month to month, subject to all conditions, provisions and obligations of this Lease in so far as the same are applicable to a month-to-month tenancy, except that rent shall be increased by 10 percent (10%) above the most recent rent amount. LESSOR will give LESSEE option to renew lease (30) days prior to lease term expiring.

3. RENT AND OTHER PAYMENTS.

a. During the first 12 months of this Lease, LESSEE agrees to pay to the LESSOR as base rent _____ Dollars (\$) per month on or before the first day of each month commencing April 1, 2016. The total sum to be paid during the first 12 months of this Lease will be _____ and _____ dollars (\$ _____)).

b. LESSEE has deposited with LESSOR the sum of _____ dollars (\$) as a security deposit to secure the faithful performance by the LESSEE of all of the terms, covenants and conditions of this Lease as well as an equipment deposit of _____ dollars. LESSEE agrees that if it shall fail to pay the rent herein reserved or the prorated expenses described above, when due, said deposit may, at the sole option of LESSOR, be applied to any rent or expenses due and unpaid, such amounts to be allocated at LESSOR'S sole discretion. Further, if the LESSEE violates any other terms, covenants and conditions of this Lease, said deposit shall be applied to any damages suffered by LESSOR as a result of LESSEE'S default to the extent of the amount of the damages suffered. Such security deposit will accrue no interest during the period held by LESSOR. The remainder of the security deposit shall be refunded to LESSEE at the termination of this Lease or any extensions thereof on written request, provided that LESSEE is not in

El Poblano Mexican Restaurant



SCALE 1 SQ = 1 FT

